

M/s Vinayak Rathi Rolling Mills Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 33736 of 2014 · **Writ petition dismissed following lead order of even date.**

HEADNOTE

Writ challenging an additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005. After a 2014 interim restraint, a Division Bench dismissed the petition on 21 March 2017, adopting the order of even date in Writ-C No. 30898 of 2016.

FACTUAL SUMMARY

The petitioner, an industrial consumer, challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand notice for additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. It relied on an interim order of 7 October 2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited) and said identical questions were pending in several matters. On 3 July 2014 a Division Bench connected the case with Writ Petition (C) No. 51884 of 2009 and restrained the respondents from demanding additional security until further orders.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging the licensee's demand for additional security under para 4.20 of the Supply Code was dismissed, the Court adopting the order of even date in Writ-C No. 30898 of 2016. ¶ 2

PRINCIPLE TAGS

additional-security Writ challenging an additional-security demand under para 4.20 of the U.P. Electricity Supply Code, 2005. After a 2014 interim restraint, a Division Bench dismissed the petition on 21 March 2017, adopting the order of even date in Writ-C No. 30898 of 2016. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 51844 of 2009, order dated 7.10.2009			1	Referred
<i>Writ-C No. 30898 of 2016 (order of even date)</i>			2	Referred